

STATE OF NEW YORK

3649--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 29, 2025

Introduced by M. of A. TAYLOR, ALVAREZ, McDONALD, ROMERO, McDONOUGH, K. BROWN, MANKTELOW -- read once and referred to the Committee on Election Law -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law and the vehicle and traffic law, in relation to joining multistate voter list maintenance organizations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Legislative findings and intent. As the official record of
2 all eligible voters in a state, a state's voter registration rolls are
3 the foundation of free, fair, and accurate elections. Illegal voting is
4 exceedingly rare but maintaining accurate voter rolls reduces the oppor-
5 tunity for such behavior and it helps build confidence in election
6 outcomes. However, keeping voter rolls up to date is a challenge
7 because, every day, voters move or die. Voters do not always remember to
8 update their registration when they move. These challenges are especial-
9 ly acute in states with large and highly mobile populations. Partic-
10 ipation in a multistate voter list maintenance organization can improve
11 the accuracy of New York's voter registration rolls. A multistate voter
12 list maintenance organization is a coordinating entity between states
13 that aids them in identifying voters who may no longer be eligible to
14 vote, who have moved, or who have died. A voter list maintenance organ-
15 ization may also offer other information useful to improving voter
16 registration or enhancing the integrity of election administration.

17 § 2. Article 5 of the election law is amended by adding a new title 10
18 to read as follows:

TITLE X

20 MULTISTATE VOTER LIST MAINTENANCE ORGANIZATION MEMBERSHIP AUTHORIZATION
21 Section 5-1000. Joining a multistate voter list maintenance organiza-
22 tion.

23 5-1001. Designating a member representative.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD03193-04-5

5-1002. Authorization to share registration records with multi-state voter list maintenance organization.

5-1003. Use of information from a multistate voter list maintenance organization.

5-1004. Withdrawal from a multistate voter list maintenance organization.

§ 5-1000. Joining a multistate voter list maintenance organization. The state board of elections shall join the state as a member in one or more multistate voter list maintenance organizations including, but not limited to, the electronic registration information center or its successor. The state board of elections shall expend funds for membership fees, dues and other expenses related to such membership.

§ 5-1001. Designating a member representative. The state board of elections shall designate the chief election official of the state of New York as the representative to the board of directors of any multi-state voter list maintenance organization that the state is a member of including, but not limited to, the electronic registration information center or its successor.

§ 5-1002. Authorization to share registration records with multistate voter list maintenance organization. 1. Notwithstanding any other provision of law, the member representative designated under section 5-1001 of this title may provide to the multistate voter list maintenance organization that they are a member of the following information from the statewide voter registration list as defined in section 5-614 of this article:

(a) all name fields;
(b) all address fields;
(c) date of birth;
(d) state voter identification number;
(e) voter's last registration date;
(f) activity dates as defined by the multistate voter list maintenance organization; and
(g) voter history.

2. The member representative designated under section 5-1001 of this title may also provide any information to the multistate voter list maintenance organization provided to such member representative from the department of motor vehicles pursuant to section two hundred nineteen-a of the vehicle and traffic law.

3. The state board of elections shall not provide any information on any person in the confidential voter program pursuant to section 5-508 of this article for any purpose under this title. Nothing in this title shall be construed to require the department of motor vehicles to provide any information on any person in such program.

4. The state board of elections is authorized to promulgate any rule or regulation necessary to effectuate the provisions of this title.

§ 5-1003. Use of information from a multistate voter list maintenance organization. 1. Notwithstanding any provision of law to the contrary, the state board of elections shall use any information provided by a multistate voter list maintenance organization that the state has joined pursuant to section 5-1001 of this title, including but not limited to, the use of such information in list maintenance activities performed pursuant to section 5-614 of this article.

2. To avoid inadvertent or accidental registration of persons ineligible to register to vote, any mailing to any potentially eligible but unregistered person shall state the voter registration criteria, including but not limited to, any citizenship requirements.

1 § 5-1004. Withdrawal from a multistate voter list maintenance organ-
2 ization. Withdrawal of the state from a multistate voter list mainte-
3 nance organization shall require an affirmative vote of the state board
4 of elections commissioners pursuant to subdivision four of section 3-100
5 of this chapter.

6 § 3. The vehicle and traffic law is amended by adding a new section
7 219-a to read as follows:

8 § 219-a. State membership in a multistate voter list maintenance
9 organization. 1. Notwithstanding any other provision of law to the
10 contrary, the commissioner is authorized to provide to the state's
11 representative to a multistate voter list maintenance organization,
12 designated under section 5-1001 of the election law, the following
13 information: (a) all name fields; (b) all address fields; (c) DMV ID
14 number; (d) last four digits of the DMV ID holder's social security
15 number; (e) date of birth; (f) current record status; (g) phone number;
16 and (h) email address, provided that the conditions and terms of member-
17 ship are consistent with the provisions of this chapter and title ten of
18 article five of the election law pertaining to such membership or recip-
19 rocal recognition of vehicle registrations.

20 2. The commissioner shall not knowingly provide any information pursu-
21 ant to this section of persons who are not citizens.

22 § 4. New York state shall join a multistate voter list maintenance
23 organization promptly after the effective date of this act and shall
24 complete its registration with a multistate voter list maintenance
25 organization on or before July 31, 2026.

26 § 5. This act shall take effect immediately.